

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JEREMY CLEVELAND,
Plaintiff,

v.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
RINOLITO INOA, Shield # 16168, 79th Precinct,
NEW YORK CITY DEPARTMENT OF CORRECTIONS,
OFFICER JANE DOE,
RIKERS ISLAND COMMAND,
Defendant(s).

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To the Person(s) named as Defendants Above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the Complaint of the Plaintiff(s) herein and serve a copy of your answer on the Plaintiff(s) at the address indicated below within 20 days after the Service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to Answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: _____

_____/S/_____
Signature

Victor M. Brown, Esq.
Print name

Address and Phone Number
11 Park Place, Suite 1100
New York, NY 10007
(212) 227-7373

Defendants' Address: _____

Venue: Plaintiff(s) designate(s) _____ County as the place of trial. The basis of the Designation is (check one)
____ Plaintiff(s) reside in _____ County.
____ Defendant(s) reside in _____ County
____ Other (describe) _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

-----X
JEREMY CLEVELAND,
Plaintiff,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
RINOLITO INOA, Shield # 16168,
79th Precinct,
NEW YORK CITY DEPARTMENT OF CORRECTIONS
OFFICER JANE DOE
RIKERS ISLAND COMMAND,
Defendants.

**VERIFIED
COMPLAINT**

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Plaintiff, JEREMY CLEVELAND, by his Attorney, VICTOR M. BROWN, ESQ., as and for a
verified complaint alleges respectfully and states as follows:

FOR A FIRST CAUSE OF ACTION

NATURE OF ACTION

1. This is a Civil Rights, False Arrest, False Imprisonment, Negligence, and Negligent supervision action for compensatory damages proximately resulting from Plaintiff having been falsely arrested, having excessive force used against him by the above captioned Defendant Police Officer(s) inside of 605 Gates Avenue in the County of Kings on November 17, 2020, and being unlawfully detained and held by Defendant New York city Corrections Officer(s) and The New York City Department of Corrections from on November 19, 2020 until January 26, 2021 on Rikers Island, New York.

NOTICE OF CLAIM

2. That on February 16, 2021, Plaintiff JEREMY CLEVELAND, prior to the bringing of the within action, and within ninety days after the date of the alleged incident, filed a Notice of Claim which was duly served upon the Defendant(s).

3. That more than thirty days have elapsed since the service of the said Notice of Claim and notice of intent to sue upon the Defendant(s).
4. That the Defendant(s) and its Comptroller have failed, neglected to pay, settle, compromise or adjust the claim of the Plaintiff.
5. That this action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
6. That the Plaintiff has duly complied with all the conditions precedent to the commencement of this action, including submission to an inquiry concerning the justness of the claim on August 16, 2021 pursuant to General Municipal Law 50.

THE PARTIES

7. That at all times mentioned, the Plaintiff, JEREMY CLEVELAND, is a United States citizen, who was, and still is a resident of the State of New York.
8. That at all times mentioned, Defendant CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department, which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department, and the employment of Police Officers, as said risk attaches to the public consumers of the services provided by THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF CORRECTIONS.
9. That upon information and belief, at all times relevant, Defendant CITY OF NEW YORK, employed Police Officers, Corrections Officers and medical personnel and others hereinafter mentioned in this complaint.
10. THE NEW YORK CITY POLICE DEPARTMENT and Defendant, THE NEW YORK CITY DEPARTMENT OF CORRECTIONS are municipal entities created and authorized under the laws of the State of New York. They are authorized by law to carry out all police and corrections

functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and a corrections force, and the employment of Police and Corrections Officers

11. Defendant(s), NEW YORK CITY POLICE OFFICER RINOLITO INOA, Shield # 16168, upon information and belief, of the 79th Precinct of THE NEW YORK CITY POLICE DEPARTMENT, is at all times relevant, a Officer, employee and agent of Defendant CITY OF NEW YORK. Defendant Officer INOA is sued individually and in that Officer's official capacity. At all times relevant, Defendant Officer INOA was acting under color of State Law and in the scope of their duties and functions as agent, servant and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. Defendant Officer INOA received training in making arrests, the utilization of force in effecting an arrest, and legal training from Defendant CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and was acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK at all times relevant herein, with the power and authority vested in them as a Police Officer, agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and incidental to their lawful duties as an officer, employee and agent of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

12. Defendant(s), NEW YORK CITY DEPARTMENT OF CORRECTIONS OFFICER JANE DOE, of the RIKERS ISLAND COMMAND, of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, is at all times relevant, an Officer, employee and agent of Defendant CITY OF NEW YORK. Defendant New York City Corrections Officer DOE is sued individually and in her official capacity. At all times relevant, Defendant New York City Corrections Officer DOE was acting under color of State law and in the scope of their duties and functions as agent, servant and employee of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance

of their lawful functions in the course of their duties. Defendant Corrections Officer DOE received training in institutional corrections, making arrests, taking complaints, and legal training from Defendant CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF CORRECTIONS and was acting for and on behalf of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS and Defendant CITY OF NEW YORK at all times relevant herein, with the power and authority vested in them as a Corrections Officer, agent and employee of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS and Defendant CITY OF NEW YORK, and incidental to their lawful duties as an officer, employee and agent of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS and Defendant CITY OF NEW YORK.

13. That on November 17, 2020, at approximately 5:45 p.m., in Apartment 1C of 605 Gates Avenue, Kings County New York, Plaintiff JEREMY CLEVELAND was at the home of a friend when he was subjected to an unlawful search and false arrest by named Defendant, New York City Police Officer RINOLITO INOA, Shield Number 16168, of the 79th Precinct. The Plaintiff was unlawfully searched, handcuffed and arrested, and subsequently accused of violation of New York Penal Law Section 140.17, Trespass in the First Degree, by named Defendant New York City Police Officer INOA. The Plaintiff was subsequently held in custody of THE NEW YORK CITY POLICE DEPARTMENT for approximately forty eight hours, without lawful reason or cause. The Plaintiff was subsequently arraigned and accused of violation of New York Penal Law Section 140.15, Criminal Trespass in the Second Degree on November 19, 2020, upon the sworn complaint of Defendant NEW YORK CITY POLICE OFFICER RINOLITO INOA, which criminal charges were subsequently dismissed by THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE.
14. That on November 19, 2020 after being arraigned on the aforementioned charge, the Plaintiff was not released by the NEW YORK CITY POLICE DEPARTMENT. Instead, the Plaintiff was remanded to the custody of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, who held the Plaintiff in custody, allegedly for a violation of Probation, even though the Plaintiff was no longer on Probation. Plaintiff's protestations regarding the validity of the alleged warrants were

repeatedly ignored by members of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, including named Defendant Corrections Officer JANE DOE.

15. That on December 1, 2020 Defendant NEW YORK CITY CORRECTIONS OFFICER JANE DOE informed the Plaintiff that the Plaintiff had two active Supreme Court warrants and that he would receive a Hearing for those warrants on December 29, 2020. Again, the Plaintiff's protestations about the validity of the warrant(s) were ignored by Defendant New York City Corrections Officer JANE DOE and THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, and the Plaintiff remained in the custody of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS without lawful reason or cause.
16. That on December 29, 2020 the Plaintiff did not receive a hearing for the aforementioned warrants by the Defendant NEW YORK CITY DEPARTMENT OF CORRECTIONS or any other entity. Instead, Defendant NEW YORK CITY DEPARTMENT OF CORRECTIONS OFFICER JANE DOE and THE NEW YORK CITY DEPARTMENT OF CORRECTIONS informed the Plaintiff that he was not scheduled to be brought to Court that day and that he was not supposed to have been given any paperwork on December 1, 2020 reflecting a Hearing date of December 29, 2020. The Plaintiff was subsequently held in custody by the NEW YORK CITY DEPARTMENT OF CORRECTIONS from December 29, 2020 until January 26, 2021, despite the Plaintiff's protestations, when he was ultimately released from the custody of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS.
17. That while the Plaintiff was being unlawfully held without reason or cause by THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, he was subjected to a physical assault by a detainee, resulting in the Plaintiff losing part of a tooth. The Plaintiff was also treated for high blood pressure, which the Plaintiff did not have prior to being unlawfully held by THE NEW YORK CITY DEPARTMENT OF CORRECTIONS and New York City Corrections Officer JANE DOE.
18. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

19. The Plaintiff repeats and realleges each and every allegation contained in paragraphs One (1) through Eighteen (18) with the same force and effect as if set forth here at length.
20. That between November 19, 2020 and December 1, 2020 Defendant(s), New York City Police Officer RINOLITO INOA, Shield Number 16168, New York City Corrections Officer JANE DOE, Rikers Island Command and THE NEW YORK CITY DEPARTMENT OF CORRECTIONS did violate the Plaintiff's Due Process rights and did negligently deprive the Plaintiff of a hearing regarding the alleged violation of probation.
21. That named Defendant CITY OF NEW YORK, is responsible for the training and supervision of the named Defendant Police and Corrections Officer(s), and THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.
22. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

23. The Plaintiff repeats and realleges each and every allegation contained in paragraphs One (1) through Twenty Two (22) with the same force and effect as if set forth here at length.
24. That on December 1, 2020, through December 29, 2020, Defendant NEW YORK CITY CORRECTIONS OFFICER JANE DOE and THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, did willfully, wantonly, maliciously and intentionally violate the Plaintiff's Due Process rights, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.
25. At the time, Defendant Officer DOE was an employee and/or servant of said Defendant CITY OF NEW YORK, and were acting as agent of Defendant CITY OF NEW YORK, in doing the acts complained of herein and within the scope of their authority.

26. Solely by reason of the foregoing negligent training and supervision of the named Defendant Corrections Officer by Defendant CITY OF NEW YORK, the Plaintiff suffered great physical and mental pain requiring medical treatment, and impairing his ability to function.
27. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

28. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Twenty Seven (27) with the same force and effect as if set forth here at length.
29. Solely by reason of the foregoing negligent training, supervision of Defendant CITY OF NEW YORK of the named Defendant Police and Corrections Officer(s), resulting in Plaintiff's false arrest, malicious prosecution, and unlawful detention between December 29, 2020 and January 26, 2021, Plaintiff's civil rights, pursuant to United States and New York State Constitutions, were violated by the named Defendant New York City Police Officer, New York City Corrections Officer(s), and Defendant CITY OF NEW YORK, causing the Plaintiff to suffer great mental distress, and injuring his reputation and character.
30. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendant(s) in the amount of Five Million Dollars (5,000,000.00) together with the costs and disbursements of this action.


VICTOR M. BROWN, ESQ.
11 Park Place, Suite 1100
New York, NY 10007
(212) 227-7373
Attorney for Plaintiff

Dated:
January 21, 2022

ATTORNEY VERIFICATION

VICTOR M. BROWN, ESQ. an attorney duly admitted to practice law before the Courts of the State of New York, and not a party to this action, hereby affirms the following under penalty of perjury:

That he is the attorney for the Plaintiff in the above-entitled action, with offices located at 11 Park Place, Suite 1100, New York, NY 10007. That he has read the forgoing Response to the requested BILL OF PARTICULARS and knows the contents thereof. That the same is true to his knowledge, except for matters stated to be upon information and belief, and as to those matters which he believes to be true.

That the reason this Verification is made by the deponent rather than the Plaintiff is because the Plaintiff is not at this time within the County of New York, which is the county where the deponent has his office. Deponent further states that the grounds for his belief as to all the matters within the Verified Complaint are based upon information supplied by the Plaintiff. The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Affirmed

A handwritten signature in black ink, appearing to read 'V.M. Brown', followed by a horizontal line.

VICTOR M. BROWN, ESQ.